Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

RESOLUTION NO. 138

RESOLUTION DIRECTING THE MINISTRY OF INTERIOR AND LOCAL GOVERNMENT TO INITIATE THE FORMULATION OF THE IMPLEMENTING RULES AND REGULATIONS (IRR) OF MUSLIM MINDANAO AUTONOMY (MMA) ACT NO. 317, OTHERWISE KNOWN AS THE "BANGSAMORO PUBLIC CEMETERY ACT OF 2014 AND FOR OTHER PURPOSES"

WHEREAS, Muslim Mindanao Autonomy (MMA) Act No. 317 or the Bangsamoro Public Cemetery Act of 2014 is considered as one of the important legislation passed by the Regional Legislative Assembly;

WHEREAS, Muslim Mindanao Autonomy (MMA) Act No. 317 mandates for the establishment, maintenance, and operation of public cemeteries in the Autonomous Region taking cognizance of the need to have a program aligned and integrated with the different religious rites and cultural practices in Bangsamoro Region;

WHEREAS, the statute provides for the active participation of the private sector and the institutionalization of a program for the provision of facilities, resource management, and services to correspond with the need of the majority of our people;

WHEREAS, the law also provided for the compliance with existing statutes, policies, and regulations related to health and sanitation in the establishment and operation of burial sites;

WHEREAS, Muslim Mindanao Autonomy (MMA) Act No. 317 was not fully implemented due to the absence of rules and regulations as provided for Section 8 of the said law;

WHEREAS, Section 8 designated the former Department of the Interior and Local Government (DILG) of Autonomous Region in Muslim Mindanao (ARMM) as the lead agency in the implementation of said law and for the crafting of its Implementing Rules and Regulations of consultation with other keys of government agencies and stakeholders;

WHEREAS, the need for a decent public cemetery in every Local Government Unit (LGU) in the region cannot be over emphasized. Hence, the immediate need for its implementing rules and regulations;

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority, to direct the Ministry of Interior and Local Government (MILG) to initiate the formulation of the Implementing Rules and Regulations of Muslim Mindanao Autonomy (MMA) Act No. 317, also known as the "Bangsamoro Public Cemetery Act of 2014 and for Other Purposes".

RESOLVED, FURTHER, in pursuant to Section 8 of the said law, the Ministry of Interior and Local Government (MILG) shall closely consult with the representatives of the Local Government Units, the Ministry of Environment, Natural Resources and Energy (MENRE) and the Ministry of Health (MOH) in the crafting of the said Rules and Regulations.

RESOLVED, FINALLY, to forward this Resolution to the Ministry of Interior and Local Government (MILG)-Bangsamoro Autonomous Region in Muslim Mindanao (BARMM); Ministry of Environment, Natural Resources and Energy-BARMM; and Ministry of Health-BARMM for information and appropriate consideration.

ADOPTED, July 15, 2021.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. ALI PANGALIAN M. BALINDONG
Speaker

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